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Case Number: 26TRCV01949 Hearing Date: August 5, 2026 Dept: P

Demurrer to Plaintiff's Complaint and Motion to Strike

Moving Party: Defendants Didi Hirsch Mental Health Services, Felicity Burgher, Christina McCue, Benjamin Wegner, Shanay Russell, Mei Ling Acevedo, and Jennifer Kaluhiokalani

Responding Party: None

RULING

The court considered the moving papers. Defendants' special demurrer for uncertainty is SUSTAINED in its entirety without leave to amend. Defendants' motion to strike is DENIED as moot.

PROCEDURAL BACKGROUND

On June 1, 2026, Plaintiff Larry William Robinson ("Plaintiff") filed a complaint against Defendants Didi Hirsch Mental Health Services, Felicity Burgher, Christina McCue, Benjamin Wegner, Shanay Russell, Mei Ling Acevedo, and Jennifer Kaluhiokalani (collectively, "Defendants"), alleging two causes of action for: (1) Professional Negligence; and (2) Intentional Infliction of Emotional Distress.

On July 1, 2026, Defendants filed the instant demurrer and motion to strike.

FACTUAL BACKGROUND

Plaintiff alleges that Defendants' demurrer is procedurally defective and alleges that the information shared between Defendant Didi Hirsch Mental Health Services and its legal counsel contained confidential information. (Complaint, pp. 3-4.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147

Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khouri v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Defendants demur to the entirety of Plaintiff's complaint on the grounds that the complaint is fatally uncertain, Plaintiff has failed to state facts sufficient to constitute any cause of action against Defendants, and Plaintiff's claims are based on Defendants' alleged litigation conduct including the filing of a demurrer in a separate action. Defendants argue that their demurrer should be sustained without leave to amend because Plaintiff's allegations arise from privileged litigation-related activity and Plaintiff is attempting to treat his opposition to Defendants' demurrer in a separate action as a separate civil lawsuit.

Defendants move to strike the following items from Plaintiff's complaint: (1) page 3, section II in its entirety; (2) page 3, section III in its entirety; (3) page 4, section IV in its entirety; (4) page 4, section V in its entirety; (5) page 5, Prayer for Relief; (6) Plaintiff's allegations pertaining to the serving, filing, or advocacy of Defendants' demurrer in Case No. 26TRCV00704; and (7) phrases in Plaintiff's complaint identified by Defendants as conclusory.

Merits of the Motion

A. Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. Section 430.41(a).)

Here, Defendants' counsel declares that he sent Plaintiff a meet and confer letter by email on June 12, 2026, Plaintiff responded on the same day, and the parties were unable to reach an agreement. (Pittman Decl., ¶¶ 5-8.)

As Defendants' counsel's declaration does not indicate that the parties met in person, by telephone, or by video conference, the court finds that the meet and confer requirements have not been satisfied. However, the court will still discuss the merits

of Defendant's demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B. Uncertainty: Code of Civil Procedure Section 430.10(f)

California Code of Civil Procedure Section 430.10(f) provides that a party may object to the complaint filed against them by demurrer to the pleading on the grounds that "the pleading is uncertain," a term which "includes ambiguous and unintelligible." (Code Civ. Proc. Section 430.10(f).) A demurrer for uncertainty will only be sustained where the defendant cannot reasonably respond to the complaint, such that the defendant cannot reasonably determine what claims are directed against her, or what issues must be admitted or denied. (Khouri, *supra*, 14 Cal.App.4th at 616.)

However, if a complaint does not properly distinguish between multiple defendants, such that it is not clear which factual allegations are made as to which parties, the complaint fails for ambiguity. (See *Hawley Bros. Hardware Co. v. Brownstone* (1899) 123 Cal. 643, 646-647.) Allegations made against multiple defendants are fatally uncertain where plaintiff alleges the same harm against multiple defendants but makes no effort to either apportion their liability or show why it cannot be apportioned in the complaint. (See *Landau v. Salam* (1971) 4 Cal.3d 901, 909.)

Here, Defendants argue that Plaintiff's entire complaint is fatally uncertain because the caption of the complaint identifies two causes of action for Professional Negligence and Intentional Infliction of Emotional Distress, yet the body of Plaintiff's complaint refers to Defendants' alleged violations of procedural rules and breach of confidential information, an allegedly defective demurrer, and Defendants' allegedly evasive tactics and malpractice. Defendants argue that Plaintiff's complaint fails to identify the specific conduct attributed to each Defendant, the specific duty owed by each Defendant, the specific breach by each Defendant, a causal link between each Defendant's alleged conduct and Plaintiff's claimed damages, or the legal basis for imposing tort liability on Defendants for a demurrer served in a separate lawsuit. (Mot. 6:10-20.)

The court concludes that the entirety of Plaintiff's complaint is fatally uncertain. The two causes of action included in the caption of Plaintiff's complaint are not referred to within the body of the complaint itself, and Plaintiff has not alleged any specific conduct committed by any particular Defendant. Additionally, the court agrees with Defendants that Plaintiff is improperly attempting to treat this action as an opposition to the demurrer filed by Defendants in a separate action brought by Plaintiff, case number 26TRCV00704.

Accordingly, Defendants' special demurrer to Plaintiff's complaint is SUSTAINED in its entirety.

C. Failure to State a Cause of Action: Code of Civil Procedure Section 430.10(e)

As the court has sustained Defendants' special demurrer for uncertainty, the court declines to address Defendants' arguments made on the basis of Code of Civil Procedure Section 430.10(e).

D. Motion to Strike

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc. Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. Section 437(a).)

Defendants move to strike the following items from Plaintiff's complaint: (1) page 3, section II in its entirety; (2) page 3, section III in its entirety; (3) page 4, section IV in its entirety; (4) page 4, section V in its entirety; (5) page 5, Prayer for Relief;

(6) Plaintiff's allegations pertaining to the serving, filing, or advocacy of Defendants' demurrer in Case No. 26TRCV00704; and (7) phrases in Plaintiff's complaint identified by Defendants as conclusory.

Because the court previously sustained Defendants' special demurrer to Plaintiff's complaint in its entirety, Defendants' Motion to Strike is DENIED as moot.

E. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ("When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.")) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The court finds that there is no reasonable possibility of Plaintiff successfully amending his complaint, as Plaintiff is improperly attempting to file a lawsuit against Defendants based on their litigation activity in a separate lawsuit, rather than alleging specific facts giving rise towards causes of action in tort.

Accordingly, the court DENIES Plaintiff leave to amend his complaint.

CONCLUSION

Based on the foregoing, Defendants' special demurrer to Plaintiff's complaint is SUSTAINED in its entirety without leave to amend, and Defendants' motion to strike is DENIED as moot.

Moving party is ordered to give notice of ruling.